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No. 39615-1

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

BRENDA ADAMS, et al,
Appellant, Plaintiff

v.

CONFLUENCE HEALTH,
Respondent, Defendant

BRIEF OF APPELLANT

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I. INTRODUCTION

Appellants/Plaintiffs (collectively "Appellants") health care workers brought employment tort law claims against their former employer Confluence Health (collectively "Respondent") for wrongful discharge in contravention of public policy and failure to accommodate disabilities for those dismissed employees claiming accommodations based on medical exemptions in violation of RCW 49.60.180. The trial court incorrectly granted summary dismissal of both causes of action, with prejudice.

II. ASSIGNMENTS OF ERROR

1. Summary dismissal with prejudice by the Superior Court of Douglas County ("Trial Court") the cause of action brought by Petitioners wrongful discharge in contravention of public policy.

2. Summary dismissal with prejudice by the Trial Court the cause of action brought by Petitioners for failure to accommodate disabilities for those dismissed employees

claiming accommodations based on medical exemptions in violation of RCW 49.60.180.

III. STATEMENT OF THE CASE

Petitioner dismissed employees claim a fundamental right to control their personal health care choices.

The dismissed employees allege that their discharges violated a clear public policy granting them bodily autonomy, including control over their own health care decisions, that the firings clearly contravened that policy, that their refusals were the cause of the discharges**,** and that the employer's decision was not justified by its claim that it was forced to fire them due to a gubernatorial proclamation, any public health recommendations, any statute, or any sound scientific basis.

The dismissed employees also allege Respondent's failure to meet their affirmative duty under the law to reasonably accommodate disabilities for those dismissed employees claiming accommodations based on medical exemptions in violation of RCW 49.60.180.

The trial court failed to provide any analysis of any kind regarding the dismissal of the failure to reasonably accommodate disabilities for those dismissed employees claiming accommodations based on medical exemptions in violation of RCW 49.60.180. (CP 318-323.)

IV. ARGUMENT

A. THE PUBLIC POLICY CAUSE OF ACTION

The Washington Supreme Court stated the following in its rendition of the history of the cause of action for discharge in violation of public policy in *Gardner v, Loomis Armored Inc.*, 128 Wn.2d 931, 913 P.2d 377 (1996), citing *Dicomes v. State*, 113 Wn.2d 612,617-18, 782 P.2d 1002 (Wash. 1989):

> Courts have found contravention of a clear mandate of public policy in four general areas: (1) where employees are fired for refusing to commit and illegal act; (2) where employees are fired for performing a public duty or obligation, such as serving jury duty; (3), such as where employees are fired for exercising a legal right or privilege, such as filing a workers' compensation claim; and (4) where employees are fired in retaliation for

> reporting employer misconduct, i.e., whistleblowing. (Emphasis added).

As the court further stated in *Dicomes,* at pages 617-18:

> The essence of the public policy exception is that an employee will have "a cause of action in tort for wrongful discharge if the discharge of the employee contravenes a clear mandate of public policy. (citation omitted).

In determining whether a clear mandate of public policy is violated, courts should inquire whether the employer's conduct contravenes or scheme**...**

> the letter or purpose of a constitutional, statutory, or regulatory provision.

(Emphasis added).

Since our Supreme Court first recognized the cause of action in question in *Thompson v. St. Regis Paper Co.* 102 Wn.2d 219, 685 P.2d 1081 (1984), it has been clear that the dismissed employee "must plead and prove that a stated public policy, either legislatively or judicially recognized, may have been contravened. **.....** [O]nce the employee has demonstrated that his discharge may have been motivated by reasons that contravene a clear mandate of public policy, the burden shifts to the employer

to prove that the dismissal was for reasons other than those alleged by the employee." *Thompson*, pages 232-33.

Here the dismissed Confluence employees are claiming that they were either expressly or constructively discharged for exercising their legal right and privilege to make their own decisions regarding whether to be vaccinated. (CP 1-8; 26-33.) They rely on a clear Washington legislative enactment, RCW 70.122.010, and on a constitutional provision, Art 1, section 7 of the Washington constitution, which have been held judicially by the Washington Supreme court to demonstrate the existence of a clear mandate of public policy supporting their right and privilege to make that decision for themselves.

Washington courts have historically utilized a four-part framework to guide the analysis of a claim of wrongful discharge in violation public policy. Court's examine (1) the existence of a "clear public policy" (clarity element), (2) whether "discouraging the conduct in which the employee engaged would jeopardize that the public policy (jeopardy element), (3) whether

the public-policy-linked conduct caused the dismissal (causation element), and (4) whether the employer is "able to offer an overriding justification for the dismissal" (absence of justification element). *Gardner v. Loomis*, 128 Wn.2d 931, 941, 913 P.2d 377 (1996). However, recent case law has refined that analysis where the claim falls within one of the recognized categories of wrongful discharge set forth in *Dicomes*, cited above. See *Peiffer v. Pro-Cut Concrete Cutting and Breaking Inc.*, 6 Wn.App. 803, 829, 431 P.3d 1018 (Division 3, 2018), citing *Rose v. Anderson Hay and Grain Co.*, 184 Wn.2d. 268, 277-78, 287, 358 P.3d 1139 (2015). In such cases, the first element encompasses both the clarity and jeopardy elements. The new elements of the claim are then (1) that the employee's discharge may have been motivated by reasons that contravene a clear mandate of public policy, and (2) the public-policy-linked conduct was a significant factor in the decision to discharge the worker. *Peiffer, Id.* If those two elements are met,

the employer must plead and prove the affirmative defense of overriding justification. *Id.*

The trial court's reasoning in dismissing the wrongful discharge in violation of public policy cause of action requires an on point public policy mandate specifically stating "the existence of a clear mandate of public policy restricting an employer from removing an unvaccinated Health Care Provider from a Health Care Setting …" (CP 295-313, p. 304). The trial court's reasoning then finds that such a statement is not specifically made in the sources cited by the Plaintiffs in support of the public policy mandate: (1) RCW 70.122.100; (2) Article I, section 7; and (3) *McNabb.* Therefore, there is no violation of public policy. *Id.*

The trial court's conclusion is too narrowly focused on what constitutes a contravention of "public policy" for purposes of the cause of action. The possible sources of the public policy are quite broad contrary to the trial court's analysis. The Washington Supreme Court stated in *Thompson*:

> In determining whether a clear mandate of public policy is violated, courts should inquire whether the employer's conduct contravenes the **letter or purpose** of a **constitutional**, **statutory**, or regulatory provision or scheme. Prior judicial decisions may also establish the relevant public policy. However, courts should proceed cautiously if called upon to declare public policy absent some prior legislative or judicial expression on the subject.

Thompson, 102 Wn.2d at 232, 685 P.2d 1081 (quoting *Parnar v. Americana Hotels, Inc.*, 65 Haw. 370, 380, 652 P.2d 625 (1982)(Emphasis added).

In *Dicomes,* the Washington Supreme Court stated:

> In general, it can be said that public policy concerns what is right and just and what affects the citizens of the State collectively … Although there is no precise line of demarcation dividing matters that are the subject of public policies from matters purely personal, a suvey of cases in other States involving retaliatory discharges shows that a matter must strike at the heart of a citizens's social rights, duties and responsibilities before the tort will be allowed.

Dicomes, 113 Wn.2d at 617, 618 (Emphasis added).

Contrary to the trial court's analysis, it is not required to have a single statute or source of public policy for the cause of action.

In *Gardner,* the facts of that case did not fit neatly into any of the categories of cases previously considered by the Court. *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 938, 913 P.2d 377, 380 (1996). Randy Gardner was an armored truck driver. The company maintained a strict policy prohibiting its drivers from exiting their vehicle between scheduled stops to prevent robbery of the valuable contents of the truck and likely injury to their employees in the process. Gardner admittedly broke the rule. As he was driving, Gardner witnessed a man threaten a bank manager with a knife. Gardner ran from his truck and saved the woman's life. Loomis fired him.

In *Gardner,* the majority stated:

> **Society** places the highest priority on the protection of human life. This **fundamental public policy is clearly evidenced** by countless statutes and judicial decisions.

Gardner, 128 wn.2d at 944 (Emphasis added).

Like *Gardner,* to obtain a proper resolution of this case, this court must decide whether several public policies have been successfully invoked by Plaintiffs. *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 938, 913 P.2d 377, 381 (1996). In *Gardner,* there was not a statement of public policy directly on point, but the court looked at a number of statements of statues including statutes which express a clear public policy encouraging citizens to assist law enforcement in the effective apprehension and prosecution of criminals. *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 939, 913 P.2d 377, 381 (1996). The Court also considered the public policy which encourages citizens to come to the aid of others in need of care such as the rescue doctrine, RCW 4.24.300 and language in case law.

"Whereas prior decisions have lumped the clarity and jeopardy elements together, analysis will be obtained by first asking if **any public policy** exists whatsoever, and then asking

whether, on the facts of each particular case, the **employee's discharge contravenes or jeopardizes that public policy**." *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 941, 913 P.2d 377, 382 (1996)(Emphasis added).

"The jeopardy element guarantees an employer's personnel management decisions will not be challenged unless a public policy is genuinely threatened." *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 941–42, 913 P.2d 377, 382 (1996).

"To establish jeopardy, plaintiffs must show they engaged in particular conduct, and the conduct *directly relates* to the public policy, or was *necessary* for the effective enforcement of the public policy." *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 945, 913 P.2d 377, 384 (1996).

"If employers are allowed to terminate their employees for saving persons from life threatening situations when the employee appears to be the only hope of rescue, then the policy encouraging all citizens to engage in such conduct would be

jeopardized." *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 946, 913 P.2d 377, 385 (1996).

1. The Clarity Element.

The Washington legislature has declared as follows:

> The legislature finds that adult persons have the fundamental right to control the decisions relating to the rendering of their own health care, ... RCW 70.122.010.

Moreover, that exact public policy was reiterated and judicially declared in *McNabb vs. Department of Corrections*, 163 Wn.2d 393 (2006), a case brought by an inmate of the Airway Heights Correctional Center. The inmate successfully asserted both a constitutional as well as a common law right to autonomously determine what is done with his body. He made that claim in the context of a situation where the state of Washington had failed to recognize his right to make, and had overridden, his decision to refuse artificial means of nutrition and hydration. McNabb relied on our state's guarantee of personal privacy in the Washington Constitution at Article I, Section 7

which states, "...no person shall be disturbed in his private affairs, or his home invaded, without authority of law."

The Supreme Court in *McNabb* acknowledged that federal courts have "...recognized a competent individual's right to refuse 'life sustaining treatment' deriving from the common law right to be free from bodily invasion and the informed consent doctrine" (citations omitted) and, also, that "it is now commonplace to observe Const. Art. I, §7 provides protections for the citizens of Washington which are qualitatively different from, and in some cases broader than, those provided by the Fourth Amendment." *McNabb* at page 400. The court further acknowledged that "Washington courts have considered the right to refuse medical treatment, including artificial nutrition and hydration, only in the context of non-incarcerated individuals who suffer from a terminal or debilitating condition. In most of those cases the individuals right has been upheld." *McNabb* at pages 401-02. The court went on to state that, though fundamental, the right to control one's own health care decisions

and to refuse treatment was not absolute, especially for inmates, whose rights are more limited. The court declared that "*narrowly drawn*, compelling state interests may outweigh that right." *McNabb* at page 402.

Ultimately, the court concluded that, as an inmate, McNabb's fundamental right to control his own health care decision regarding preservation of his life was outweighed by the factors supporting the State's interest in applying the Department of Correction's force-feeding policy to McNabb. In other word, the state's exercise of its police power was balanced against the inmate's fundamental right and the police power won the contest.

The foregoing compels the conclusion that there is a clear mandate of public policy in this state providing that each adult individual has a fundamental right to control the decisions relating their own health care. The dismissed employees in this case are not inmates under the control of the prison system. Dismissed employees are not suing the state because the state never mandated their discharges.

The decision by Respondent to abrogate Petitioners fundamental right to make their own health care decisions by subjecting them to discharge was not made or compelled by any mandate or policy of the State of Washington, but rather was chosen and implemented by this private employer, Respondent Confluence Health.

Contrary to Respondent's assertions, Respondent was not required by the gubernatorial mandate to take the action of barring its exempt, but "unvaccinated," employees from working in its facilities. Respondent does not support its contrary position with any quote from the governor's proclamation or from the pronouncements of the state Department of Health, which provided a mandate to fire exempt employees who remained "unvaccinated."

Rather, at page 6 of its brief is found the following quote;

> Indeed, the Department of Health prohibits nonexempt employees from working in a Health Care Setting. Nothing in the Proclamation allowed a nonexempt unvaccinated employee to have direct contact with patients in a Health Care Setting. Id.

> ("If you do not meet these deadlines, including by providing proof to the operator of health care setting where you work, then you are not permitted to work there, unless the operator has provided you a disability or religious accommodation")(emphasis added) (Italics added here)

(CP 233-249; p 238.)

The proclamation thus specifically allowed for employers to grant such exemptions for "religious" or "disability" and thus allow employees to keep their jobs as part of the accommodation process. CP 90-140; pp 111-123. The provisions on exemption from vaccinations are found at pages 5 and 6 of that document. (CP 115-116.) Those provisions simply require that individuals who are granted exemptions and remain in the workplace are required to "take COVID-19 safety measures that are consistent with the recommendations of the state Department of Health for the setting in which the individual works." In other words, they would be subject to masking and periodic testing for COVID-19. Respondent cites no recommendations from the Department of Health suggesting that

such individuals be fired, or barred from direct patient care, as Respondent alleges.

Respondent knew it was not legally mandated to fire such individuals or to remove them from direct patient care by the Proclamation or by the Department of Health is clear from a written communication promulgated to the employers' own staff issued before the deadlines set in the Proclamation. (CP 124-128.) In that letter Respondent explained to all its employees that, even if they sought and were successful in being granted an exemption, they would be fired after a 12-week, unpaid, personal leave of absence per Confluence Health's leave policy. (CP 129-140; pp 138-139.) In its own question/answer sheet, the employer posed the following question: "I have heard that other organizations have a different process for accommodation, is that true?" The employer then answered, "Yes. There is a variability of exemption and accommodation processes by hospitals and clinics in our region. Some are reportedly approving essentially all exemption requests and making accommodations. We do not

believe this meets the intent or wording of the Governor's mandate".... (CP 90-140; p 94.) That well communicated position created for many employees an intolerable situation, discouraging some employees from even seeking exemptions and made it impossible for those who did to maintain their livelihoods at the employers' hospitals and clinics.

Respondent did not base its actions on a narrowly drawn compelling state interest, but rather, by its own admission, asserted and implemented a plan to fire the plaintiffs which it derived from a more broadly drawn interpretation not supported by the Governor's Proclamation, and which even the other health care providers in its own region declined to implement.

2. The Jeopardy and Causation Elements.

As clarified in *Peiffer*, supra, the jeopardy and causation elements, i.e. whether "discouraging the conduct in which the employee engaged would jeopardize that the public policy (the jeopardy element), and whether the public-policy-linked conduct caused the dismissal (the causation element) are combined in this

cause due to the claim of the dismissed employees that their claim falls within one of the recognized categories of wrongful discharge, set forth in *Dicomes*, specifically their exercise of their legal right and privilege to control their own health care choice. See *Peiffer*, supra at 829, citing *Rose v. Anderson Hay and Grain Co.*, 184 Wn.2d. 268, 277-78, 287, 358 P.3d 1139 (2015).

Petitioners allege all the dismissed employees in this case received a letter or other communication from the employer expressly declaring that their failure to submit to COVID-19 vaccination by a date certain would result in being put on an unpaid leave and, ultimately, terminated from employment with the employer 90 days following that deadline. The majority of the dismissed employees alleged they sought medical or religious exemptions to the employer's mandate but, when those exemptions were denied[1], were placed in unpaid status. Certain

[1]The employer called this action a "leave without pay" and suggested that placement of the employee in unpaid status was actually a

other plaintiffs resigned in the face of the employer's demand, either before or after seeking to be granted an exemption. After accepting the resignations, or after placing the employees who did not resign on unpaid leave, the Petitioners allege the employer, in most of the cases at bar, followed through with letters of termination. (CP 90-140; p 99.) However, certain of the employees, who were union members, continue to be excluded and unpaid, though yet to be formally discharged due to a pending union grievance process. (CP 90-140; p 99.) Regardless all the dismissed employees were effectively terminated, whether expressly or constructively. It is clear that in each case the impetus for being separated from their employment was their decision to exercise the fundamental right to control their personal health care choices.

There is no doubt that in each case their public-policy-linked conduct caused their dismissals.

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granting of their exemption request and an accommodation to the employee.

The court should be guided by the decision in *Martin v. Gonzaga Univ.*, 191 Wn.2d 712, 425 P.3d 837, 844 (2018). There our Supreme Court held that to prove causation in a public policy discharge case the employee need only adduce evidence that the public-policy-linked conduct was a substantial factor in the discharge decision. Moreover, the court should note the Court of Appeals of Washington's decision in *Peiffer*. supra, at page 839, [citing *Wahl v. Dash Point Family Dental, Inc.*, 144 Wn. App. 34, 43 181 P. 3d 864 (2008)], that a cause of action for wrongful discharge in violation of public policy may be based on either express or constructive discharge. When the hybrid claim (alleging constructive discharge) is asserted, the elements of a constructive discharge claim[2] supplant the combined first element. *Peiffer*, *Id*. *Peiffer* is a case where the

[2] The elements of a constructive discharge are that (1) the employer deliberately made working conditions intolerable, (2) a reasonable person in the employee's position would be forced to resign, (3) the employee resigned because of the intolerable condition and not for any other reason, and (4) the employee suffered damages as a result of the forced resignation. *Barnett v. Sequim Valley Ranch, LLC*, 174 Wn.App. 475, 489, 302 P.3d 500 (2013).

employee resigned because the employer refused to pay him for work performed.

Each dismissed employee in this case can set forth sufficient proof, when discovery is enjoined (which discovery has not taken place as a result of the summary dismissal), to meet the combined jeopardy/causation element of the cause of action.

3. The Absence of Justification Element.

As originally stated in *Thompson*, supra, "[o]nce the employee has demonstrated that his discharge may have been motivated by reasons that contravene a clear mandate of public policy, the burden shifts to the employer to prove that the dismissal was for reasons other than those alleged by the employee." *Thompson*, pages 232-33. It is clear that the overriding justification posited by the employer must have motivated the discharge(s), not be some form of justification developed after the fact. See *Peiffer*, supra, at page 729-30. In this case, the employer cannot meet its burden of alleging and proving another reason for the discharges which does not

implicate the public policy. Respondent's claim that it was compelled by state law to terminate the Petitioners is without merit. Therefore, Respondent cannot meet Respondent's burden of proof of overriding justification. It is clear in this case that this employer discharged all of the dismissed employees for exercising their right to make their own health care choices regarding the COVID-19 vaccination. If the employer's burden is to show another, unrelated, reason for firing the dismissed employees, such as being compelled by the Governor, this issue must be decided against the employer as a matter of law.

Nevertheless, Respondent tries to sidestep that argument by positing that it can prove an "overriding justification" that is so compelling as to warrant summary dismissal of the case without any further examination of whether its actions were ultimately justified, either legally or scientifically. Respondent is unable to provide a reason the discharges was something other than the dismissed employees' exercising their right to make their own health care choices

regarding the COVID-19 vaccination. Respondent argues that its overriding justification was that forcing the dismissed employees to give up their fundamental right to control their own health care decision was generally in furtherance of public health and/or mandated by a gubernatorial decree.

Respondent offers no proof of either, including failing to respond to the medical evidence as articulated in part by Petitioners' expert Dr. Peter McCullough's Declaration (CP 9-25) which opinions include:

(1) "COVID-19 vaccines do not prevent transmission" (CP 9-25; p 22, lls 8-10);

(2) "… the epidemic spread of COVID-19, like all other respiratory viruses, notably influenza, is driven by symptomatic persons; asymptomatic spread is trivial and inconsequential" (CP 9-25; p 17, lls 21-24); and

(3) "Accordingly, a rational and ethical preventative measure to reduce the spread of COVID-19 is a simple requirement, as part of formal policies, that persons with active

symptomatic, febrile (feverish) respiratory illnesses, like COVID-19, should isolate themselves (CP 9-25; p 18, lls 7-10)."

In other words, Respondent wants the court to relieve Respondent of their burden to prove overriding justification, which is legally Respondent's burden to meet, by claiming that the gubernatorial mandate and/or the workplace safety of the so-called vaccinated workers and the patients in the workplace provided an overriding justification for refusing to honor the fundamental right of the dismissed employees as a matter of law. Respondent failed to meet Respondent's burden.

Even if the court accepts this more broad and subjective approach to looking at whether the employer can meet its burden of proof in this case based on principles of public health, the Respondent cannot be granted a summary dismissal on that basis. The burden of proving an overriding justification is on the defendant as an affirmative defense. See *Hubbard v. Spokane County*, 146 Wn.2d 699, 50 P.3d 602, 612 (2002)(citing *Gardner*; 128 Wn.2d at 941). Once raised, whether the employer

had an overriding justification is a question of fact if evidence is adduced in support of both parties, as is the case here. *Id.* This record contains much evidence to dispute the employer's claim that a gubernatorial mandate or public health or safety justified its dismissal of these employees, as well as to dispute their claim that it was independently justified from a public health perspective.

First, the evidence in this case is that the gubernatorial mandate did not require this employer to ignore proof of natural immunity, to deny requests for medical and religious exemptions, or to fashion a so-called "accommodation" to those requests that effectively fired the employees by preventing the dismissed employees from working or being paid after the stated deadline. This is evidenced by the gubernatorial mandate itself and by the fact that many other health care and governmental entities subject to the mandate did not exclude individuals with valid claims of exemption or immunity from their workplaces, opting to just implement testing requirements instead. In its zeal

to avoid that approach, this employer, however, actually went so far as to instruct its physicians to not seek or support medical exemptions on behalf of employees, and to fashion an "accommodation" to claimed exemptions that constituted a clear constructive discharge of those employees. (CP 90-140; p 102.)

Second, there is much evidence in this case, primarily the testimony of Dr. Peter McCullough, firing the "unvaccinated workers" was a scientifically unsound approach and never had the effect of protecting other workers or the patients of Confluence Health. For example, Dr. McCullough opines:

> … the mandatory administration of COVID-19 vaccines in employees does not prevent transmission among the vaccinated or unvaccinated in the workplace and does not improve workplace safety. This has been well established scientifically since at least the middle of 2021. The use of other preventative measures, particularly testing, is far more effective and far less intrusive to employee and patient autonomy and to the right of personal safety.

(CP 9-25; p 24, lls 22-25, p 25, lls 1-2.)

Third, the action taken was unnecessary due to the fact that all or nearly all of the dismissed employees possessed natural

immunity from Covid 19 after having worked directly with Covid 19 patients, or in a setting infused with that virus, for over a year previous to their dismissals. (CP 9-25; p 22-24.) Dismissed employees posed no greater threat to patients and other workers than the "vaccinated" employees who were not discharged. Dr. McCullough medical opinion states:

> … mandatory COVID-19 vaccination for hospital and clinic employees does not increase safety for hospital or clinic employees or patients.

(CP 9-25; p 11, lls 22-25.) The real question is whether these employees who claimed or could claim exemptions from the COVID-19 vaccination mandate posed a real threat to the workplace.

Fourth, evidence will be developed through discovery (which again did not take place as a result of the summary dismissal) that this employer knew or should have known of the foregoing facts when the decision was made to fire these employee, but purposefully, and in contravention of its own policy, ignored what the medical community did know in

October, 2021 and excluded from input into its decision nearly all the shareholder physicians at Confluence Health.

Fifth, there will be evidence in the record, once developed through discovery, that the employer applied its mandate, and its decision to fire workers, in such an inconsistent manner, and with such exceptions to its application, that it never had a chance of achieving its goal or workplace safety even if such a mandate could have otherwise done so.

B. THE FAILURE OF RESPONDENT TO MEET RESPONDENT'S AFFIRMATIVE DUTY TO REASONABLY ACCOMMODATE THOSE EMPLOYEES CLAIMING MEDICAL EXEMPTIONS IN VIOLATION OF RCW 49.60.180

As Division II of the Washington Court of Appeals explained in *Clipse v. Commercial Driver Services, Inc*, 189 Wn.App. 776, 792, 358 P.3d. 464 (2015), "There are two types of disability discrimination claims; disparate treatment and failure to accommodate." (citation omitted). See also *Riehl v. Foodmaker, Inc.*, 152 Wn.2d 138, 145, 94 P.3d 930 (2004).

As in all cases brought under The Washington Law Against Discrimination (WLAD), Washington Courts apply the plain language of the statute liberally to effectuate its purpose of remedying disability discrimination. *Clipse*, 793; See also, *Taylor v. Burlington Northern Railroad Holdings, Inc.*. 193 Wn.2d 611, 621-22, 444 P.3d 606 (2019) ("First, the legislature intended to adopt a broad and expansive definition of 'disability' in order to protect against discrimination. Second, the legislature has expressly rejected the idea that the ADA should be used to constrain the protections offered under the WLAD.")

Petitioner's appeal is for the dismissal with prejudice of the failure to accommodate cause of action for those employees claiming medical exemptions in violation of RCW 49.60.180. The Trial Court's letter decision failed to address this cause of action, which appears that dismissal may have been inadvertent. (CP318-323.) Even so, that cause of action was dismissed with prejudice by the Trial Court's Order, so we are appealing that

dismissal even though the Trial Court did not provide any analysis for that dismissal. (CP 318-323.)

It should be noted that the Trial Court did address the disparate treatment cause of action in the letter decision and Petitioner's have chosen not to appeal that dismissal. (CP 318-323.)

In this case it is clear that the employer was well aware of its affirmative duty to accommodate the workers it perceived to be disabled. (CP 90-140; p 107.)

That duty is clearly established in Washington case law. *Davis v. Microsoft*, 109 Wn. App. 884, 37 P.3d 333 (2002), aff'd, 149 Wn.2d 521, 70 P.3d 126 (2003). See also *Sommer v. DSHS*, 104 Wn. App. 160, 172-73 (Div, I, 2001). The duty includes the duty of taking "positive steps" to affirmatively assist a disabled worker, which may include helping the employee move to any existing vacancy. *Id.* The employer need not accommodate a worker where to do so would place an undue burden on the employer. The burden of proving undue hardship is on the

employer. *Easley v. Sea-Land Sevv., Inc.*, 99 Wn.App. 459, 464-467 (Div.I, 2000). Generally, whether an employer made a reasonable accommodation or whether the employee's request for such placed an undue burden on the employer are questions of fact for a jury. *Pulcino v. Federal Express*, 141 Wn. 2d 629, 644 (2000); *Phillips v. Seattle*, 111 Wn.2d 903, 910-11, 766 P.2d 1099 (1989).

Here, after determining that its policy was to remove all "unvaccinated" workers from the workplace, the employer provided the "unvaccinated" workers with an opportunity to submit requests for medical or religious exemptions in writing, though Petitioners allege Respondent discouraged its in-house physicians from supporting request for medical exemptions. (CP 90-140; p 107.) Most of the dismissed employees submitted those requests. However, an employee's failure to request reasonable accommodation does not relieve the employer of its obligation to provide reasonable accommodation. *Kimbro v. Atlantic Richfield Co.*. 889 F.2d 869, 877 (9th Circuit, 1989).

Here, the employer failed to actually accommodate any of the dismissed employees. Instead, the employer feigned accommodating the dismissed employees, putting them on unpaid leave until they became vaccinated, and telling them that, if they failed to do so within 90 days, they would be permanently discharged. (CP 90-140; p 108.)

Moreover, the employer here failed, as required by law, to determine, through the use of an interactive process, the nature and extent to which any of the dismissed employees could be appropriately accommodated. See *Goodman v. Boeing Co.*,127 Wn.2d 401, 408, 899 P,.2d 787 (1995). This is required to be accomplished by an interactive process between the employer and employee. *Goodman*, at 408-9. All of the dismissed employees had been working for over a year in an environment wherein the Covid 19 virus was ubiquitous, exposing them all. Many had contracted and recovered from Covid 19 symptoms. There were valid options to the determination of the employer that their so-called "unvaccinated" condition required their

removal from the workplace. Medically, it had been known for many decades that people already infected and recovered from a viral infection possessed a level of natural immunity far greater than any protection afforded by the so-called vaccines being utilized at the time could produce. (CP 90-140; p 108.) It was incumbent upon the employer here to inquire concerning which of the employees it was considering for termination could establish natural immunity, making the submission to COVID-19 vaccination unnecessary and even counter indicated. Other employees in the group were working in a area of the workplace, or performing duties in a manner which could have allowed the employer's goal of preventing spread to be met by allowing them to perform from home or on the premises with periodic testing for the virus. Those options were also not seriously explored by the employer in this case. When an employer fails to employ a process designed to find a reasonable accommodation before permanently firing a disabled employee that action severely

undermines the purpose of the WLAD to eliminate unlawful discrimination. *Davis*, supra, at 894.

V. ATTORNEYS' FEES AND EXPENSES.

Pursuant to RAP 18.1, Petitioners will request attorneys' fees and expenses including those in this appeal.

Washington has two important statutes providing for recovery of attorney's fees and costs to employees, Washington's wage statute, RCW 49.48.030, and the Washington Law Against Discrimination, RCW 49.60.030 ("WLAD").

Construing RCW 49.60.030, Washington courts consistently have recognized Washington's "long and proud history of being a pioneer in the protection of employee rights." *Drinkwitz v. Alliant Techsystems, Inc.*,140 Wn.2d 291, 300, 996 P.2d 582 (2000). "One of the primary purposes of remedial statutes like RCW 49.48.030 is to allow employees to pursue claims even though the amount of recovery may be small. *Int'l*

Ass'n of Fire Fighters, Local 46 v. City of Everett, 146 Wn.2d 29, 50, 42 P.3d 1265 (2002).

The courts have applied a similar construction to the WLAD noting the attorney's fee provision is "to be construed liberally in order to encourage enforcement of the Law Against Discrimination." *Blair v. Wash. State University*, 108 Wn.2d 558, 571, 740 P.2d 1379 (1987).

As the Washington Supreme Court has noted, in bringing an employment discrimination action, a prevailing party acts as a "private attorney general: by enforcing a public policy of substantial importance." *Allison v. Seattle Housing Authority*, 118 Wn.2d 79, 86, 821 P.2d 34 (1991).

We note that Petitioners are not entitled to attorneys' fees and costs as prevailing parties at this stage, Petitioners will be entitled to an award of all attorneys' fees and costs if Petitioners are ultimately the prevailing party, including the fees and costs to pursue this appeal.

VI. CONCLUSION

For the reasons discussed above, this Court should reverse the Superior Court decision granting summary dismissal and remand the case for discovery and trial.

I certify the number of words contained in this document is 5,990.

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